

RECORD OF PROCEEDINGS FOR THE GOVERNING BODY OF THE CITY OF CHEYENNE

Office of City Clerk

February 14, 2015

The Governing Body of the City of Cheyenne convened in a special meeting on this date beginning at 8:30 a.m. in Council Chambers for the purpose of collective labor bargaining with Cheyenne Professional Fire Fighters, International Association of Fire Fighters (I.A.F.F.), Local No. 279. Present were: MAYOR: Richard L. Kaysen; COUNCIL MEMBERS - Mr. Brown, Mr. Cook, Mr. Johnson, Mr. Luna, Dr. Rinne, and Mr. Shanor. Absent: Mr. Roybal, Mr. Valdez and Ms. Williams. Also present were: Carol Intlekofer, City Clerk; Dan White, City Attorney, and Lois Huff, City Treasurer. The pledge of allegiance was recited. Mayor Kaysen advised that any executive session of the governing body held during the meeting was pursuant to authority provided under the Public Meetings Act.

Mayor Kaysen requested Local No. 279 present the proposed Ground Rules as combined (i.e. City's and Union's proposed rules) by the Union. Copies of the combined rules, titled Ground Rules for the 2015-2017 Collective Labor Agreement, were distributed. Jonathon Bertsch, President, I.A.F.F. Local 279, introduced O'Kelley Pearson, attorney on behalf of I.A.F.F. Local 279. Ms. Pearson reviewed sections contained in the proposed combined rules. It was noted the proposed rules, as well as the Union's contract proposal, are for a two year term.

Dan White, City Attorney, requested, as the combined Ground Rules are being presented for the first time at the meeting, the governing body move into executive session to discuss. Mr. Cook moved that the governing body meet in executive session, seconded by Mr. Luna. Motion carried. Voting "yes" -- all members of the governing body present. Mayor Kaysen asked Mr. White to identify City staff requested to be present at the executive session in addition to the governing body. [City Clerk note: Audio recording of the meeting was stopped; Executive session convened at 8:52 a.m. in the Mayor's Conference Room] During the executive session, Mr. Shanor, citing Wyo. Stat. §16-4-405, voiced objection that wording in Section 14 of the proposed Ground Rules forces the governing body to take action in executive session without the ability to make statements on that action in an open meeting session in violation of Wyo. Stat. §16-4-403(a).

Following closure of the executive session, Mayor Kaysen reconvened the special meeting at 10:05 a.m. Upon request by Mayor Kaysen, Mr. White reviewed the governing body's directive on desired changes to the title and certain sections contained in the combined Ground Rules. Clarification of wording regarding proposed changes was provided through dialogue between Mr. White and Ms. Pearson. Mr. Bertsch and Ms. Pearson acknowledged agreement to the Ground Rules with the City's requested changes as reviewed by Mr. White. Mayor Kaysen recessed the special meeting at 10:16 a.m. to allow for the Ground Rules to be prepared in final form for signatures to be acquired prior to moving forward with proposed contract negotiations. [City Clerk note: Audio recording of the meeting was stopped]

Mayor Kaysen reconvened the special meeting at 10:55 a.m. and thanked the parties for

finalizing the Ground Rules, titled as Ground Rules for the 2015 Collective Labor Negotiations. Ms. Pearson advised of a procedural detail change made in Section 6 pertaining to duration (i.e. 2 hours) of bargaining sessions. Upon query by Mayor Kaysen to members of the governing body as to any objection to the procedural detail change, and no objection being raised, the Ground Rules, as finalized, were distributed and signatures were placed upon two sets of the Ground Rules.

Ms. Pearson requested the City prepare a “block and strike” version of its proposed contract for comparative purposes, and a scheduling calendar for future meetings. Mr. White stated he would prepare the version and submit to the Union on Tuesday, February 17, 2015. Mayor Kaysen requested identification of spokespersons for the Union and the City pursuant to the approved Ground Rules. Mr. Bertsch identified Union spokespersons would be himself; Kevin Reddy and possible attorneys representing the Union. Mr. White identified corporate authority spokespersons would be himself; Lois Huff, City Treasurer, and Chief Jim Martin, Cheyenne Fire and Rescue Department. It was determined the next special meeting dates for negotiations would be Friday, February 20, 2015; Tuesday, February 24, 2015; Wednesday, February 25, 2015 and Thursday, February 26, 2015. Each meeting will convene at 6:00 p.m. in Council Chambers. David Evans, attorney representing Local No. 279, expressed that it was envisioned that at the February 20th meeting both parties would summarize its contract proposals with further clarifications to begin following the summaries, if time permitted, or at future meetings. Mr. White acknowledged concurrence with Mr. Evans’ statements.

Mayor Kaysen stated the purpose of the special meeting had been met, and there being no further business previously noted for the special meeting, adjourned the meeting at 11:16 a.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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